



File No: EXP202315094

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 11, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against GAFAS EN RED DE ÓPTICAS, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No: EXP202315094 (PS/00076/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On 09/29/23, A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758 (hereinafter, the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The facts stated by the complainant, among other issues, are that they never gave permission to receive advertising but received advertising by mail, and although they filed a complaint with the AEPD, the company claimed it did not send advertising. They indicate that they have already sent all the screenshots and headers, and the AEPD did nothing and continues to receive advertising via SMS without an unsubscribe link.

Along with the complaint, the following documentation is attached:

- Screenshot of the received advertising SMS:

o On 05/15/23: "Just for being a customer, get 10% off our progressive glasses starting at €59 and on ALL EXTRAS! Book an appointment here: bit.ly/extra10_gafas."

o On 08/11/23: "As a regular customer, we have reserved one of our limited discounts for you: high-end glasses + free sunglasses... More info at: <http://s.bril.ly/11jmug6>."

o On 09/22/23: "Take advantage of this special offer: single vision glasses for €9 and progressive glasses for €59! <http://s.bril.ly/12sy604>"

SECOND: On 10/27/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the respondent for analysis and to report, within one month, on what was stated in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), through electronic notification, with access to the content of the notification occurring on 11/06/23.

THIRD: On 12/28/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint submitted, in accordance with Article 65 of the LOPDGDD.

FOURTH: On 02/28/24, this Agency received a written response to the request for information made, in which the respondent states the following:

1. Our company, which has been operating since its foundation as Gafas en Red de Ópticas SLU, has changed, effective January 1, 2024, its name and registered office to those listed in the header of this document.

2. SuperVista SLU, gafas.es, is the Spanish subsidiary of the German company SuperVista AG, headquartered at Siemensstraße 2, 15711 Königs Wusterhausen, Germany. The data of customers and users of gafas.es, always obtained with their express consent, are incorporated into the automated files of our parent company, SuperVista AG, which is responsible for the data files and their processing.

3. SuperVista Optics SLU does not have direct access to the databases, cannot manage them, nor perform direct analysis regarding a specific contact. For this reason, upon receiving the communication, it had to be forwarded to our headquarters in Königs Wusterhausen.

4. The user of the phone ***PHONE.1 has filed a complaint for receiving SMS sent by our company to their mobile phone after having requested the deletion of their personal data, which had been legally obtained when the interested party purchased glasses from our company.

5. Indeed, the personal data of the interested party were deleted from the databases managed by our company for commercial purposes,

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maintaining those related to your orders, which we are legally obligated to do in order to fulfill the obligations that may arise from that purchase (Organic Law 3/2018 of December 5, Art. 8; Law 58/2003, of December 17, General Tax Law, Articles 66 and 29.2.e; and Article 30.1 of the Commercial Code).

6. The capture of the SMS received by the claimant proves that, unfortunately, and despite our company's continuous effort to improve processes and controls, an error has occurred that has inadvertently included that phone number in the list of SMS recipients. As soon as this was noted, the claimant's number was removed from the computer system that manages all our marketing activities.

7. Regarding the SMS received not having an option to unsubscribe, due to technical space constraints, it was not possible to include it in the SMS itself, given its brevity, but the option to unsubscribe is indeed available through the link that appears in the message, as seen in this capture of the SMS received by the claimant: This link leads to an exclusive landing page for SMS where the user can unsubscribe by clicking on the button provided for that purpose.

8. Regarding the sending of the SMS to the claimant, the parent company, as the responsible party for the data files and their processing, after a thorough investigation of the case, finds that the claim is justified and acknowledges the existence of the incident, due to human error, which represents an unfortunate isolated deviation in our otherwise effective processes and control mechanisms. Aware of the importance of the incident, SuperVista AG has decided to reinforce internal guidelines and employee training to prevent any similar incidents in the future.

9. A thorough analysis of the circumstances that enabled the incident has been conducted, and it has been determined that it originated from human error. It has been confirmed that the cause of the incident was that, when updating the instructions for executing certain tasks, the communication did not effectively reach all employees.

10. In order to prevent similar incidents from occurring in the future, the following measures have been adopted:

- Update of work instructions. Upon becoming aware of the incident, the instructions governing the execution of tasks were immediately reviewed to ensure that they are fully understandable and clear, so that any possibility of human error can be minimized.
- Employee training and awareness. A comprehensive training program has been introduced for our employees to reinforce their awareness of the importance of data protection and to ensure that, when instructions are updated, they are understood and faithfully followed by all. These specific trainings are already implemented and will be maintained regularly.
- Strengthening of control mechanisms. To verify the effectiveness of the measures adopted, internal control mechanisms have been strengthened, which include periodic inspections and

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feedback sessions with employees. These controls were introduced immediately and will continue to

be carried out on an ongoing basis to ensure compliance and the effectiveness of the new measures. Finally, our company reiterates its awareness of the relevance of the incident and reaffirms its total commitment to the continuous improvement and strengthening of our data protection procedures. We guarantee that all necessary measures are being taken to prevent similar incidents in the future and to ensure trust in the effectiveness of our data protection measures.

LEGAL GROUNDS

I.

Competence.

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of the LSSI and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD.

The fourth additional provision of the LOPDGDD establishes, regarding the "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws," that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II.

Summary of the Facts

According to the complainant, he never gave permission to receive advertising but received advertising by mail, and although he filed a complaint with the AEPD, the company denied it. He indicates that he has already sent all the screenshots and headers, and the AEPD did nothing and he continues to receive advertising via SMS without an unsubscribe link.

According to the respondent party in its letter dated 28/02/24, it is the Spanish subsidiary of the German company SuperVista AG, headquartered in Germany, and the data of customers and users of gafas.es are incorporated into the automated files of the parent company.

It states that SuperVista Optics SLU does not have direct access to the databases, cannot manage them, nor perform direct analysis regarding a specific contact. However, it states that, after the complaint filed by the complainant and after having requested the deletion of his personal data, "(...) Indeed, the personal data of the interested party was deleted from the databases managed by our company for commercial purposes (...)", but acknowledges that the SMS sent to the complainant was the result of an error: "(...) proof that, unfortunately and despite our company's continuous effort to improve processes and controls, an error occurred that inadvertently included that phone number in the list of SMS recipients (...)".

III.

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Background

According to this Agency, there are several complaints filed by A.A.A. against the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758:

a). - File EXP202106055 (E/12726/2021):

On 03/11/21, a letter from A.A.A. was received at this Agency stating, among other issues, the following:

- He has been a customer of GAFAS EN RED DE ÓPTICAS, S.L. After purchasing glasses, he signed an invoice. At the bottom of it, it indicates that the customer has been informed about the processing of their personal data, that they consent and accept to receive offers and promotions from gafas.es.
- He provides a photograph of the bottom of that document. The complainant's signature is not visible, nor is there any box that allows expressing opposition to the processing of data for commercial purposes. The complainant states that he was not informed, nor was he asked if he gave his consent.
- On 02/11/21, he requested the deletion of his data to the email address servicio-clientes@gafas.es and received a response that same day at 11:50 hours stating that he was only asked for permission to

send him information about other products of their company and they consider his consent withdrawn and agree to his deletion request.

- On 02/11/21 at 13:45 hours, he received advertising by email from the address

***EMAIL.1@ofertas-gafas.es, with the subject: "¡Double joy for your eyes!".

- On 03/11/21, the complainant reiterates his deletion request by email and the respondent replies that on 02/11/21 he did not send any advertising and that it is possibly from other advertising companies to which he may have given his consent.

On 29/11/21, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the complaint, considering that the complainant acknowledges a prior contractual relationship with the entity responsible for sending the communication received, from which it is inferred that the respondent entity had attended to the request to exercise the right on 02/11/21, as provided in the data protection regulations.

However, in the same resolution, it was indicated to the complainant that, "If you continue to receive advertising after that date, you may file a new complaint providing a copy of the complete content of the body of the communications received ...".

b). - File EXP202106055 (E/13732/2021)

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On 29/11/21, a new document was received by this Agency, submitted by the complainant against GAFAS EN RED DE ÓPTICAS, S.L., in which they stated the following:

"The MAIN problem is the assumption that I want to receive advertising, without questions, without options, without any type of consent, just a signature on an invoice where in a corner there was small text stating that by signing I accept. The justification for the advertising based on 'prior contractual relationship' I am not sure is correct since I have never had any relationship with this company. The store where I signed the invoice works with this company. I have nothing to do with it. I have done everything with the store, not with the company that works with the store."

It provides headers of an email received on 02/11/21 at 13:45:32 hours. It does not provide evidence of receiving advertising after 02/11/21, the date on which the data controller responded to their request.

On 29/12/21, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the new complaint.

On 30/12/21, the complainant submitted a request for reconsideration in which they expressed disagreement with the resolution, basing it fundamentally on the same facts and arguments presented in previous complaints.

On 19/01/22, a resolution was issued dismissing the request for reconsideration RR/00801/2021, arguing that there is no evidence that there is no prior relationship with the entity responsible for sending the communication received on 02/11/21, nor has it been proven that the complainant's data was processed by the complained entity after that date, so it can be presumed that the complainant's opposition request was duly addressed.

c).- File EXP202307355 (AT/02768/2023)

On 29/05/23, a new complaint document was received from A.A.A. against the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758, in which they state, among other issues, the following:

"The company has completely disregarded the law again. I have received advertising again, this time by SMS. My data is still with this company that does not comply with the law, clearly doing whatever it wants and continues to be supported by the AEPD. It doesn't matter what I ask the company because they comply with nothing and lie saying they haven't sent anything. 1. I never gave explicit consent. (It is not legal) 2. I complained and despite providing many pieces of evidence and writing several complaints, the AEPD did nothing despite their illegalities and lies proven in screenshots and attached documents. 3. The company continues to deceive, still has my data, and continues to send advertising illegally, now by SMS."

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On 10/07/23, the complained entity stated, among other issues, the following:

"As indicated, the data was deleted when requested by the complainant, and despite this, they received a communication in May; the incident was due to a specific error for several reasons: change of platform for sending communications, conducting a commercial campaign aimed at former customers carried out for the first time via SMS. The novelty of these processes caused an error whereby the complainant's phone number was improperly imported into the list of former customers to whom a special discount was to be offered. Once the error was known, they suspended the sending of communications and upon review found no more affected records. They have reviewed the verification and import protocol to prevent a similar incident from occurring again."

On 04/09/23, a resolution of filing was issued by the Director of the Spanish Agency for Data Protection, stating that, after analyzing the reasons presented by the complained party in the file, it is considered that the initiation of a sanctioning procedure is not warranted as the complaint has been addressed, and it is appropriate to agree to the filing of the complaint made.

IV

Classification of the possible infringement committed by sending commercial communications

The fact that the complained party sends advertising messages to the complainant without them having previously requested or expressly authorized them may constitute a violation of what is established in Article 21 of the LSSI, as it states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility of opposing the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where the recipient can...

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exercising this right, the sending of communications that do not include said address is prohibited."

V

Proposal and Graduation of Sanction

The aforementioned infringement is classified as "minor" in article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in article 21 are not met and does not constitute a serious infringement."

According to the provisions of article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Article 40 of the LSSI establishes the criteria for the graduation of the amount of sanctions:

The amount of the fines imposed will be graduated according to the following criteria:

a) The existence of intent.

- b) The period of time during which the infringement has been committed.
- c) The recurrence of committing infringements of the same nature, when declared as such by a firm resolution.
- d) The nature and amount of the damages caused.
- e) The benefits obtained from the infringement.
- f) The volume of billing affected by the committed infringement.
- g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established by article 40 of the LSSI:

- The existence of intent (section a), since the claimant had requested not to receive any more commercial communications and the entity being claimed had acknowledged receipt of said request, confirming that it had been attended to, and despite this, subsequently sent advertising messages again.

According to these criteria, it is deemed appropriate to impose an initial sanction of €10,000 (ten thousand euros) for the infringement of article 21.1 of the LSSI, without prejudice to what results from the instruction of the procedure.

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758, for the violation of article 21 of the LSSI, classified as minor in article 38.4.d) of said regulation.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €10,000 (ten thousand euros) for the infringement of article 21 of the LSSI, without prejudice to what results from the instruction of this sanctioning procedure.

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity GAFAS EN RED DE ÓPTICAS, S.L. with CIF: B73833758, granting it a hearing period of ten working days to formulate allegations and present any evidence it deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a 20% reduction of the sanction to be imposed in this procedure, equivalent in this case to €2,000. With the application of this reduction, the sanction would be established at €8,000, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount, equivalent in this case to €2,000. With the application of this reduction, the sanction would be established at €8,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution.

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In this case, if both reductions were to be applied, the amount of the fine would be established at 6,000 euros (six thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the fine.

If the option is taken to proceed with the voluntary payment of either of the amounts indicated above (8,000 or 6,000 euros), it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is subject. Furthermore, the proof of payment must be sent to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. If this period elapses without a resolution being issued and notified, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of the notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí
Director of the Spanish Agency for Data Protection.

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SECOND: On April 4, 2024, the respondent has proceeded to pay the fine in the amount of 6,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the fine and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

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LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of

Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the second has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be determined in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202315094, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to GAFAS EN RED DE ÓPTICAS, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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